

		30 Overruled 31 Overruled. As a reply separate statement is not authorized in the summary judgment statute or Rules of Court, the court declines to consider the same. The court also declined to consider the supplemental declaration filed with the reply. (See <i>Jay v. Mahaffey</i> (2013) 218 Cal.App.4th 1522, 1537-38). Plaintiff's request to continue the hearing is denied. Plaintiff's supporting evidence fails to establish the specific facts plaintiff expects to obtain, an estimate of the time necessary to obtain the information, and the specific steps or procedures the opposing party intends to utilize to obtain such evidence. (See <i>Granadino v. Wells Fargo Bank, N.A.</i> (2015) 236 Cal.App.4th 411, 420.) Defendants shall give notice.
52.	State Farm General Insurance Company v. Alai 2019-01065145	Cross-defendants James M. Baratta, Milton V. Fajardo, Michael Genovese, and Grant Genovese Baratta LLP's motion to strike cross-complainants 12712, LLC and TSC, Inc.'s operative first amended cross-complaint is GRANTED, without leave to amend. (See Code Civ. Proc., §§ 436, subd. (b), 428.10; see also <i>id.</i>, § 428.20.) A cross-complaint must be brought, at least in part, by a party "<i>against whom</i> a cause of action has been asserted in a complaint or cross-complaint." (See Code Civ. Proc., §§ 428.10, 428.20.) Neither 12712 LLC nor TSC, Inc., the only two cross-complainants to the subject cross-complaint, is "[a] party against whom a cause of action has been

		asserted in a complaint or cross-complaint” in this action. (Code Civ. Proc., § 428.10; see ROA Nos. 171 [first amended complaint], 316 [Alai & TSC’s third amended cross-complaint]; see also ROA No. 471 [12712 LLC & TSC, Inc.’s operative first amended cross-complaint].) Cross-complainants’ request for sanctions is DENIED. Moving parties shall give notice.
53.	Chameleon EBikes, LLC v. RNR Group, Inc. 2023-01301129	Motion No. 1. Demurrer. Defendant Randy Morton’s Demurrer to Plaintiff’s Complaint is OVERRULED. (See Code Civ. Proc. § 430.10.) Defendant’s motion lacks a separate demurrer. To demur to a complaint, the demurrer must include a separate document called a Demurrer that identifies the party and pleading that is the subject of the demurrer, the grounds for the demurrer, and which causes of action are challenged and the grounds for the challenge. (See Calif. Rules Court, rule 1320 (a), (c); Code Civ. Proc. § 430.60.) As defendant has failed to file a demurrer, the court construes defendant’s motion as a demurrer on the grounds of uncertainty and a general demurrer. The demurrer on the grounds of uncertainty is overruled. The complaint is not so poorly drafted that Defendant cannot reasonably respond. (See <i>Khoury v. Maly’s of California Inc.</i> (1993) 14 Cal.App.4th 612, 616.) The general demurrer as to the 1st and 2nd causes of action also fails. The complaint alleges facts sufficient